

When will He **HANG?**

The sentence has to be confirmed and like others, Kasab can appeal and file for clemency. Thanks to the long queue, it could take months, even years.

By Shyamlal Yadav

It is a question ringing on the streets of Mumbai and resonating across India. Almost instinctively, raging in anger and anguish, survivors, grief-stricken relatives and Indians are asking this question on posters, news channels and public forums. His guilt was never in doubt, the declaration is a formality establishing India's faith in the rule of law. That is done. Ajmal Kasab has been declared guilty and sentenced. However, it will be some time before the inevitable. Despite the new benchmark for speedy trial set by

Special Judge M.L. Tahaliyani, the eventual could take years.

Once the death sentence is pronounced in the "rarest of the rare" case, the law requires the sentence to be confirmed by the high court. Embedded in the Constitution, this is a guarantee for any convict sentenced and if the convict doesn't appeal, it is an automatic process. If confirmed, the convict will appeal to the Supreme Court. The magnitude of the terror attack, the anger

and public sentiment and Tahaliyani's benchmark will enforce speedy hearings. But the end of the judicial process is not necessarily the end of the road for Kasab. The supreme irony is that the terrorist who killed seven people, including top police officers, and who was responsible for the death of 65 commuters at CST Station, can appeal to the President that his life be spared.

The process of clemency itself is steeped in delay. Thanks to the politics of clemency, Kasab could be on death row for quite some time. To appreciate, consider the process. Mercy petitions are filed under Article 72 of the Constitution before the President and these are forwarded to the Ministry of

You cannot pick and choose and hang."

VEERAPPA MOILY,
Law Minister

FACTSHEET

Till May 2004, 13 cases, involving 22 convicts, were pending before the President.

Since June 2004, only three mercy petitions have been disposed.

In 2009, the MHA had recalled and resubmitted four cases.

As on April 1, 2010, 25 mercy petitions are pending for President's consideration.



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**PROTESTERS IN MORADABAD
DEMAND DEATH FOR KASAB**